

**BEFORE THE
FEDERAL MARITIME COMMISSION**

Docket No.: 14-16

BALTIC AUTO SHIPPING, INC.,

Complainant,

– vs. –

**MICHAEL HITRINOV
a/k/a MICHAEL KHITRINOV,
EMPIRE UNITED LINES CO., INC.,**

Respondents.

**COMPLAINANT’S MOTION TO STRIKE RESPONDENTS’ UNAUTHORIZED SUR-
REPLY, MADE WITHOUT LEAVE OF THE PRESIDING OFFICER OR THE
COMMISSION, AND/OR FOR LEAVE TO INTERPOSE A RESPONSE TO SAME**

Complainant, Baltic Auto Shipping, Inc. ("Baltic"), by and through its attorney, Marcus A. Nussbaum, Esq., hereby moves to strike respondents’ unauthorized sur-reply of February 16, 2017 to complainant’s motion for an Order, pursuant to Rule 72 of the Commission’s Rules of Practice and Procedure, 46 C.F.R. § 502.72: (1) discontinuing the instant matter with prejudice, and without costs, attorneys’ fees or disbursements to either party as against each other; and (2) discontinuing the appeal/exceptions filed by Complainant herein, with prejudice. In the alternative, complainant moves, pursuant to Rule 71(c) of the Commission’s Rules of Practice and Procedure, 46 C.F.R. § 502.71(c) for leave to interpose a reply to respondents’ unauthorized sur-reply.

On February 16, 2017, the undersigned received a four (4) page document from respondents’ counsel whom, in an act of sheer desperation apparently took it upon himself, wholly without permission or authorization of the Commission to interpose a Sur-Reply on complainants’

instant pending motion.

To the extent that respondents' counsel a) never requested, sought, or obtained leave of the Presiding Officer or the Commission to interpose a Sur-Reply hereon, nor was respondents' counsel directed to interpose a Sur-Reply by the Presiding Officer or the Commission; b) *fails* to allege that complainant, in its Brief in Reply to the pending motion made or set forth any arguments or raised any issues not contained within complainants' original motion; and c) *failed* to allege any other extraordinary circumstances herein, it is respectfully requested that the Commission reject respondents' unauthorized Sur-Reply in its entirety, and neither afford nor accord same any consideration whatsoever in deciding complainant's instant motion.

It is additionally respectfully submitted that respondents' subject filing, authored by respondents counsel, Mr. Doyle blatantly ignores the fact that the subject settlement agreement (which Mr. Doyle claims was not signed by respondent Hitrinov and should therefore be disregarded) was, in fact, authored by respondents' counsel in the Federal litigation, to wit: one Jon Werner, Esq.

Annexed hereto as Appendix "1" is an email from Mr. Werner of April 21, 2016, which was copied to Mr. Doyle (who cannot now continue to feign ignorance of the settlement agreement) wherein Mr. Werner explains as follows:

"Mr. Nussbaum,

I await your response to Mr. Doyle in due course, and remind you that per the terms of the settlement finalized today, ***the parties must advise the Federal Maritime Commission within two business days, i.e. by Monday, April 25, 2016 that the parties are in the process of finalizing a global settlement and wish for the Commission to stay all activity in Docket 14-16 pending consummation of the settlement*** which is expected to occur within the next 60 days.

Per Judge Cavanaugh's directive to me after you left, ***I will be preparing an initial draft of the settlement agreement and mutual general release*** and will provide same tomorrow for review and comments."

Also contained within Appendix “1” is the cover email of April 25, 2016 wherein Mr. Werner provided the draft of the settlement agreement to the undersigned.

Should there be any doubt as to respondents’ intent to enter into the subject settlement agreement and as to respondents agreement to the material terms of settlement contained therein, the Commission should be aware that a dispute arose between the parties as to whether or not complainants were obligated to provide respondents with an ink original of the settlement agreement or whether a facsimile would be sufficient (with the original to be retained by the Court). Annexed hereto as Appendix “2” for the Commission’s reference is a letter authored by Mr. Werner and filed Mr. Werner on the docket on the matter of *Empire United Lines Co., Inc. et al. v. Baltic Auto Shipping, Inc. et al.* U.S.D.C. – D.N.J., 15 Civ. 355 (CCC) (MF), wherein Mr. Werner admits to same and states as follows:

“As you know, I represent the plaintiffs in this case and write to very briefly respond to the letter filed today by Mr. Nussbaum (Docket Entry 71) in which he contends that defendants never consented or agreed to provide plaintiffs with an *ink* signed copy of the settlement agreement. When counsel participated in the telephone conference conducted before Your Honor on June 10, the undersigned explained that ***this was one of the remaining items to be completed in order for the parties’ settlement to be consummated...***”

The Commission is also asked to note that on page “2” of the letter, Mr. Werner further admits to the existence of the settlement agreement “having been reached”. It is therefore respectfully submitted that the Office of the Commission cannot be used and abused in such a deceitful and despicable manner as that plied by respondent, Hitrinov, and his counsel, Doyle, in their collective faithless and feckless attempt to evade and avoid terms and conditions extracted and agreed to by Hitrinov, and drafted by his counsel, Werner at Hitrinov’s insistence, which now mandate dismissal and discontinuance of the case at bar, without costs and/or attorneys’ fees to either party.

WHEREFORE, based upon the foregoing together with arguments set forth in complainant's original motion and reply thereto, it is respectfully submitted that the Presiding Officer and the Commission should now grant complainant's motion in its entirety; dismiss this case with prejudice and without costs and attorneys' fees to either party; grant complainant leave to withdraw the pending appeal and discontinue this matter without costs or attorneys' fees to either party, order respondent to seal his unauthorized sur-reply, together with such other and further relief as may be just and proper under the circumstances.

Dated: March 12, 2017
Brooklyn, New York

Respectfully Submitted,

A handwritten signature in cursive script, appearing to read "Marcus A. Nussbaum", written over a horizontal line.

Marcus A. Nussbaum, Esq.
P.O. Box 245599
Brooklyn, NY 11224
Tel: 888-426-4370
Attorney for Complainant

CERTIFICATE OF SERVICE

I hereby certify that I have this day served the within **COMPLAINANT'S MOTION TO STRIKE RESPONDENTS' UNAUTHORIZED SUR-REPLY, MADE WITHOUT LEAVE OF THE PRESIDING OFFICER OR THE COMMISSION, AND/OR FOR LEAVE TO INTERPOSE A RESPONSE TO SAME** and **APPENDIX** upon Respondents' Counsel, The Law Office of Doyle & Doyle, with the address of 636 Morris Turnpike, Short Hills, NJ 07078 by first class mail, postage prepaid, and by email (gdoyle@doyelaw.net).



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Dated: March 12, 2017
Brooklyn, New York